



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 7595 (EXTENSION)
SECOND REVISION March 11, 1985

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 7595 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to September 30, 1993. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

J. Suzanne Hagepelt
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

OCT 10 1991

(DATE)

Dist: FHWA

EXEMPTION HOLDER

APPLICATION DATE

American Cyanamid Company
Wayne, NJ

August 2, 1991



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DOT-E 7595
(SECOND REVISION)

1. American Cyanamid Company, Wayne, New Jersey, is hereby granted an exemption from those provisions of this Department's Hazardous Materials Regulations specified in paragraph 5 below to offer packages prescribed herein of a Poison B liquid for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the transport of certain Poison B liquids in DOT Specification MC-312 cargo tanks, and provides no relief from any regulation other than as specifically stated. Each of the following is hereby granted the status of party to this exemption:

Rhone-Poulenc Inc., (RPI), Monmouth, New Jersey - PTE-1

2. BASIS. This exemption is based on the application of American Cyanamid Company dated January 27, 1984, submitted in accordance with 49 CFR 107.105 and the public proceeding thereon. The granting of party status is based on the following application submitted in accordance with 49 CFR 107.111 and the public proceeding thereon:

RPI's application dated October 5, 1984.

3. HAZARDOUS MATERIALS (Descriptor and class). S[(1,1-dimethyl ethyl) thio]-Methyl] 0,0-diethyl phosphorodithioate; Common Name Terbufos, Counter; o,o-diethyl S-[(ethylthio) methyl] phosphorodithioate; Common Name Phorate, Thimet; O-Ethyl S,S-di n-propyl phosphorodithioate, Common Name Ethoprop; and liquid mixtures containing these materials; classed as Class B poisons.

4. PROPER SHIPPING NAME (49 CFR 172.101). Organic phosphate compound or Organic phosphate compound mixture, liquid; as appropriate.

5. REGULATIONS AFFECTED. 49 CFR 173.358; 173.359.

6. MODES OF TRANSPORTATION AUTHORIZED. Motor vehicle.

7. SAFETY CONTROL MEASURES. Packaging prescribed is:

a. DOT Specification MC-312 cargo tanks with head and shell constructed of 316 stainless steel, one-quarter inch (1/4 inch) thick.

b. Ring stiffeners shall be spaced at 36 inch maximum.

c. Tanks shall be designed for minimum lading density of 13 pounds per gallon.

d. Tanks shall be equipped with bottom outlet conforming with 49 CFR 178.337-11(c).

e. Normal tank capacity is 5000 gallons.

f. Tank may be enclosed in a trailer body as shown in photographs on file with the Office of Hazardous Materials Regulation (OHMR).

8. SPECIAL PROVISIONS.

- a. A copy of this exemption must be carried aboard each motor vehicle used to transport packages covered by this exemption.
- b. Each driver must be instructed and have in his possession written information concerning necessary safeguards and first aid procedures to be followed in the event of unusual delay, fire, leakage, or accident. Driver must have in his possession the central telephone number of NACA, Chemtrec, and Company officials for use in the event of an emergency.
- c. Each cargo tank must be reinspected and retested once every 2 years in accordance with 49 CFR 177.824 as prescribed for DOT Specification MC 312 cargo tanks. Pneumatic retesting of one and one-half the design pressure in authorized in place of the required hydrostatic test. Compliance with 49 CFR 177.824(c)(4) is hereby waived.
- d. Materials transported under the conditions of this exemption are limited to those materials whose vapor pressure, measured at 100°F., does not exceed the design pressure of the cargo tank. Cargo tanks shall not vent under normal transportation conditions.
- e. Outside packaging must be marked DOT-E 7595, in letters at least 2 inches high on the right side near the front.

9. REPORTING REQUIREMENTS. Any incident involving loss of contents of the package must be reported to the Office of Hazardous Materials Regulation as soon as practicable.

10. EXPIRATION DATE. February 28, 1986.

Issued at Washington, D.C.


Alan I. Roberts
Associate Director for
Hazardous Materials Regulation
Materials Transportation Bureau

(DATE)

Address all inquiries to: Associate Director for Hazardous Materials Regulation, Materials Transportation Bureau, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C., 20590. Attention: Exemptions Branch.

Dist: FHWA